License Plate Reader Resolution

Resolution

(W1) WHEREAS UIPD is knowingly continuing to violate DPS Policy 429.5.2 since 2024 by giving external agencies access to the University's LPR data,

(W2) WHEREAS UIPD and OVCFA denied violating 429.5.2 in an official, written communication to the UIUC Senate before admitting the violation,

(W3) WHEREAS UIPD allowed their LPR data to be searched for purpose of enforcing an ICE administrative warrant which the Chief and Deputy Chief of Police now acknowledge may have violated state law 625 ILCS 5/2-130,

(W4) WHEREAS UIPD violated DPS Policy 429.3 from 2022 to 2026 by not conducting required audits for LPR misuse among department members, as UIPD now acknowledges,

(W5) WHEREAS UIPD violated DPS Policy 429.5.3 from 2022 to present by not conducting the required data quality reviews,

(W6) WHEREAS UIPD violated DPS Policy 429.6.2 from 2022 to present by not submitting annual evaluations to the Chief of Police and the OVCFA, as the Chief of Police now acknowledges, because the Chief of Police was not aware of that policy,

(W7) WHEREAS no external body held UIPD accountable to these violations of DPS Policy Chapter 429,

(W8) WHEREAS without UIPD's LPRs, UIPD may still issue nation-wide watches for missing persons and stolen vehicle license plates using the FBI NCIC,

(W9) WHEREAS without UIPD's LPRs, the Illinois State Police, Champaign County Sheriff's Office, and Champaign Police Department still have searchable LPRs throughout Champaign and Urbana,

Now the following shall be resolved:

(R1) RESOLVED that the University community condemns the recent (W3, W4) and ongoing (W1, W5, W6) violations of policy,

(R2) RESOLVED that while it was not necessarily intentional, the University community condemns the false reports to Senate bodies by UIPD and the OVCFA (W2),

(R3) RESOLVED that due to the precedent of false reports (W2) and ineffective oversight (W7), no amount of additional reporting or oversight can be sufficient,

(R4) RESOLVED that the University community urges the DPS and UIPD to cancel all contracts and not enter any new contracts for stationary LPR hardware, such as Flock and Axon, while noting they may still use the FBI NCIC and AMBER Alert system when necessary to flag license plates of interest (W8, W9).

Evidence

DPS Policy 429.5.2

DPS Policy 429.5.2 states,

> Another Illinois law enforcement agency may request that the Department search the ALPRS database… An Authorized User shall conduct the requested search. If a match is found, the

> Authorized User shall transmit a copy of the Reading to the other law enforcement agency and create a record of the shared information in an Assist Other Agency Report

DPS Policy 429.1.1 (Definitions) defines "Authorized User" as "A Department member who…"

DPS Policy 103.4 (Definitions) defines "Department" as "The University of Illinois Division of Public Safety."

These quotations are present and identical in the September 2022 Manual of Policy, under the numbers 430.4.2, 430.1.1, and 103.4 respectively.

Although they may conduct searches on behalf of other Illinois agencies, they have to request that an "Authorized User" "transmit a copy of the Reading" "if a match is found." However, from 2024 (or possibly earlier) to present, UIPD gave and is giving people who are not members of the Department, and thereby not Authorized Users, access to their LPR system.

Flock User Manual page 6 states that the "Flock Network Audit" shows "who has searched your [Flock] network from any agency in the Flock system." Flock Network Audits obtained in FOIA 26-1992 for certain time periods within 2024, 2025, and 2026 show that external agencies were searching our agency in the Flock system.

Even when removing a duplicate searches by an over-estimate, there are 29,083 non-duplicate searches in fifteen days in January 2026, or approximately one per minute at all hours (Table 1).

Org Name	Search Time
Hamilton County TN SO	01/01/2026, 06:00:02 PM UTC
Wilmette IL PD	01/01/2026, 06:00:06 PM UTC
Clark County IN SO	01/01/2026, 06:00:25 PM UTC
Evendale OH PD	01/01/2026, 06:00:53 PM UTC

Table 1: Access log showing searches on UIPD's data by external agencies from noon to 12:01pm on January 1, 2026.

UIPD and the DPS gave false reports to Senate bodies

We presented evidence that should have caused UIPD to investigate and determine that the sharing was not consistent with policy.

Evidence presented to UIPD: On April 14, Samuel Grayson's proposed resolution to the Campus Operations Committee stated,

> UIPD does not disclose with whom our Flock ALPR data is shared, but several external agencies disclose that they have access to UIPD Flock ALPR data, including Wauconda IL PD, Prospect Heights IL PD, and Berwyn IL PD (see footnote).
>
> Footnote: https://transparency.flocksafety.com/berwyn-il-pd, https://transparency.flocksafety.com/prospect-heights-il-pd, https://transparency.flocksafety.com/wauconda-il-pd

At that time, the page appeared as in this screenshot (Figure 1), showing that users from Wauconda had access to UIPD LPR data.

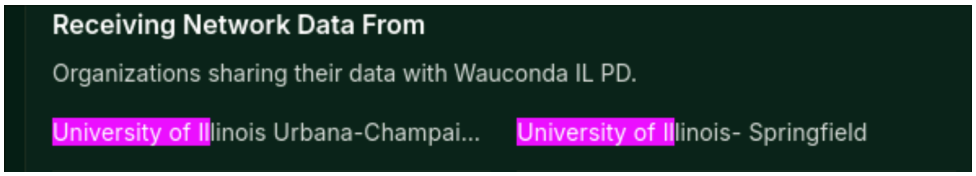


Figure 1: Wauconda PD Flock transparency portal showing that Wauconda PD had access to UIPD data.

UIPD response: June 12, the Deputy Chief of Police's written response to a subcommitte subcommittee of the Campus Operations Committee:

> These provisions reflect UIPD's requirement that ALPR searches and sharing requests be conducted through authorized departmental personnel in accordance with policy [referencing 429.5.2 from his previous paragraph] …
>
> The proposal does not present evidence that UIPD: automatically shares ALPR data… or operates outside applicable law or policy.

The resolution does not suggest that UIPD should have immediately agreed with Samuel Grayson's petition, only that the information it contained warranted further investigation. If UIPD *had* investigated, they would have found the truth they later acknowledged: that UIPD's Flock data is shared with other agencies, and the sharing is not consistent with policy.

The Assistant Vice Chancellor for Finance and Administration wrote in an email, "I have met with UIPD to review their draft response," indicating that the OCVFA reviewed the response containing false statements.

Further evidence presented to UIPD: On June 18, Samuel Grayson emailed a FOIA response showing a list of 425 agencies with access to UIPD data to the subcommittee. A representative of the Vice Chancellor for Finance and Administration forwarded the email to UIPD.

UIPD declined to revise: On July 16, the subcommittee was told, "He [the Deputy Chief of Police] stands by his report and will not be making any amendments to it."

On October 21, the Deputy Chief of Police's stated verbally in the Campus Operations Committee

> Deputy Chief of Police:
> I ran an audit for a search this morning to see who had been accessing our system, and our department and Champaign County are the only ones that have accessed our system since September 29…
>
> Samuel Grayson:
> 429.1.1 states that authorized users are capital D "Department" members. Is that not a requirement?
>
> Deputy Chief of Police:
> As I said, any time you write a policy, it's an evolution. We've realized that we need to rewrite that policy.

[1]This date will be changed to the date that the resolution is considered again.

In this discussion, the Deputy Chief of Police did not state that he would eliminate external agency access. Indeed, according to UIPD's Flock Transparency Portal on October 22[1], UIPD still grants access to external agencies (Figure 2).

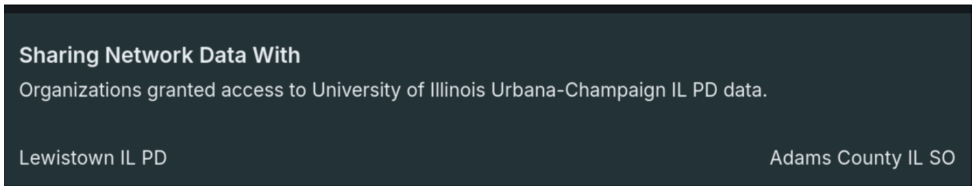


Figure 2: UIPD Flock transparency portal showing that UIPD shares access with external departments.

Significance: This shows that UIPD *knows* that the sharing is in violation of the policy; rather than stop sharing until policy is rewritten, UIPD opted to violate the policy.

Had UIPD been following this policy in 2025, external agencies would not have been able to use the University's data for civil immigration enforcement. However, UIPD was not following that policy, so such acts occurred.

State Law 625 ILCS 5/2-130(b)

625 ILCS 5/2-130(b) of the Illinois Vehicle Code states "An ALPR user shall not sell, share, allow access to, or transfer ALPR information to any state or local jurisdiction for the purpose of investigating or enforcing a law that… permits the detention or investigation of a person based on the person's immigration status," effective January 1, 2024.

Recall that the Flock Network Audit shows when external agencies access UIPD's Flock data. I obtained the Flock Network Audit from UIPD from March 20 to March 31, 2025 in FOIA 26-1082 (Table 2).

Org Name	Search Time	Reason
Mesa AZ PD	03/24/2025, 04:00:40 PM	immigration violations
Florida Highway Patrol	03/24/2025, 12:45:14 PM	ice administrative warrant
Dallas TX PD	03/25/2025, 02:36:46 AM	ICE+ERO
Texas Department of Public Safety	03/25/2025, 6:35:08 PM	Immigration Status

Table 2: Access logs showing external agencies conducting immigration-related searches on UIPD's data in 2025. Note that the "Reason" column is constructed by joining against a list of known immigration searches from another FOIA request.

On October 21, the Deputy Chief of Police advised the Campus Operations Committee thusly:

> Samuel Grayson:
> Did any out-of-state agencies ever query our data, ever search our database for a stated reason that relates to immigration enforcement?
>
> [omitting discussion over relevance of the question]
>
> Deputy Chief of Police:
> Yes. They were run for that stated fact. Now, how that was used and what that actually meant? Was that a criminal warrant that they tagged as immigration? We don't know the answer to that.

In a second dialogue, the Chief of Police states he does not know whether Illinois agencies were legally allowed to respond to some of those searches:

> Samuel Grayson:
> There is this one search from Florida Highway Patrol on March 24, 2025 that says the reason was for "ICE administrative warrant." So you're saying that it's possible that was also for a criminal warrant, but they put in as the reason they typed in "administrative"? Or what is your theory as to the legality of that?
>
> Chief of Police:
> We don't have enough information on that case. Is it possible? I think it's possible that you've been put up. It's possible that they still can use it for that. We just don't know.

This is contrary to the September 10 DPS response which asserted the DPS knws the sharing to be legal, "[a]ccess was granted or denied in a way consistent with state law."

Significance: UIPD may have illegally put undocumented students, faculty, staff, residents, and visitors at risk of violence from immigration enforcement agencies.

DPS Policy 429.3

DPS Policy 429.3 states, "Any procedures will include logging access to ALPRS data and periodic auditing of these systems, and random auditing" to "evaluate the compliance of Authorized Users." This item appears in the September 2022 Manual of Policy, although at that time it was numbered 430.3.

When I sent a FOIA request for *all* compliance audits, the earliest audit was dated to May 2026. On October 21, the Chief of Police confirmed this to the Campus Operations Committee:

> Chief of Police:
> We're conducting the monthly audits at this point, have been since May…
>
> Samuel Grayson:
> Can you answer when the audits were required, when it first became policy to require the audits?
>
> Chief of Police:
> I believe that's 2022.

Initially, in response to the September 9 version of the petition claiming "UIPD has more likely than not been in violation of DPS Policy 429.6.2 for at least the past five years", the OVCFA and the DPS issued a public response on Septemeber 10 stating, "DPS completes monthly audits of the ALPRS to confirm that the system is being utilized in a way that's consistent with state law and departmental policy." One might wrongly think the OVCFA and the DPS disagrees with the resolution's assertion, but a closer examination shows the DPS only said that UIPD "completes" audits in the present-tense, which was true at the time of writing; it avoids commenting on the state of the audits in the four years prior to that. We point this out merely to avoid misinterpretation of the OVCFA and the DPS as disagreeing with the petition's assertion.

Significance: Due to the lack of audits prior to May 2026, we cannot determine whether UIPD officers misused Flock in that time frame to the level of certainty that the policy intends.

DPS Policy 429.5.3

DPS Policy 429.5.3 states, "The Department will conduct regular data quality reviews and maintenance of ALPRS equipment." This item appears in the September 2022 Manual of Policy, although at that time it was numbered 430.4.3.

Samuel Grayson requested the "most recent" data quality review in the aforementioned FOIA 26-986.

Adrienne Nazon (Vice President, External Relations and Communications and Chief Records Officer) responded saying "searches of relevant systems, including electronic files where they believed responsive materials would reasonably be expected to be maintained… No responsive records could be located" (page 2). The letter confirms that the Captain of Administrative Services, who is the administrator of the ALPR system, and the Chief of Police, who is ultimately responsible for UIPD's policy compliance, were consulted (page 3).

UIPD and the DPS have been aware of this complaint since Samuel Grayson's June 16 email to the subcommittee. Unlike the other missing audits, UIPD and the DPS have never clamed that "regular data quality reviews" occur.

Significance: Without regular data quality reviews, we do not know how many Flock stops are due to AI hallucinations. According to the City Government of Oak Park, in 40% of the Flock alerts that led to traffic stops, Oak Park police determined the data was incorrect. In the absence of further information about UIPD's data quality, one should assume that UIPD also has a low rate of accuracy.

DPS Policy 429.6.2

DPS Policy 429.6.2 states, "The Captain of Administrative Services or authorized designee shall evaluate the ALPRS at least annually and submit evaluation reports to the Chief of Police and the Vice Chancellor for Administration and Operations." This item has been in the manual of policy since at least September 2022, although at that time it was numbered 430.5.2.

Note the position formerly known as the Vice Chancellor for Administration and Operations was renamed to the Vice Chancellor for Finance and Administration, and all responsibilities transferred.

Samuel Grayson requested "[t]he most recent ALPR annual evaluation report," and he specifically asked that the "Captain of Administrative Services" be consulted in FOIA 26-2320. Adrienne Nazon (Vice President, External Relations and Communications and Chief Records Officer) responded, "a search was conducted and no responsive records could be located. Please note that the first annual evaluation report will be issued for the year 2026. This report will not be finalized until 2027."

The Chief of Police confirmed the lack of reports and that he was not aware of this policy in the following dialogue on October 21 in a Campus Operations Committee:

> Grayson:
> Can I ask you about the annual audit? When was the first annual audit consistent with policy, the one that policy requires?
>
> Chief of Police:
> There has not been; there will be one this year. So when you look at the policy that requires the annual audit, it was not something that was passed down or identified. … There's not a formal report; that is on me. I was not aware of that.

Significance: If the annual evaluation reports were done, perhaps, perhaps the other violations in this resolution would have been detected and rectified prior to their being identified by non-employees. Not only this, the Chief of Police was not even aware of that policy.